

**El Paso County  
Delia Briones  
County Clerk**

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Instrument Number: 00000000013

r.cobos

Recorded On: 2/19/2026 12:00:10 PM

Number of Pages: 1

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**Examined and Charged as Follows:**

**Total Recording: 36.00**

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\*\*\*\*\*THIS PAGE IS PART OF THE INSTRUMENT\*\*\*\*\*

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY  
because of color or race is invalid and unenforceable under federal law.

**File Information**

Document Number      00000000013  
Receipt Number        1954601  
Recorded Date/Time:   2/19/2026 12:00:10  
                                 PM  
Station:                CCH01-CCK108

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State of Texas  
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon,  
and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones  
County Clerk  
El Paso County, TX

Our Case No. 25-07213-FC

## **APPOINTMENT OF SUBSTITUTE TRUSTEE and NOTICE OF TRUSTEE SALE**

THE STATE OF TEXAS  
COUNTY OF EL PASO

**Deed of Trust Date:**  
September 4, 2007

**Property address:**  
498 NOTRE DAME LANE  
EL PASO, TX 79927

**Grantor(s)/Mortgagor(s):**  
GABRIEL GARAY, JOINED PRO-FORMA BY HIS WIFE,  
MARINA GARAY

**LEGAL DESCRIPTION:** Lot 5, Block 2, Notre Dame Subdivision Unit 1, an addition to the County of El Paso, Texas, according to the map and plat thereof on file under Clerk's File Number 20060038933, Plat Records of El Paso County, Texas.

**Original Mortgagee:**  
THE UNITED STATES OF AMERICA ACTING THROUGH  
THE RURAL HOUSING SERVICE, OR SUCCESSOR  
AGENCY, UNITED STATES DEPARTMENT OF  
AGRICULTURE

**Earliest Time Sale Will Begin:** 10:00 AM

**Current Mortgagee:**  
UNITED STATES OF AMERICA, ACTING THROUGH THE  
RURAL HOUSING SERVICE, ITS SUCCESSORS AND  
ASSIGNS, UNITED STATES DEPARTMENT OF  
AGRICULTURE

**Date of Sale:** APRIL 7, 2026

**Property County:** EL PASO

**Original Trustee:** ALVIS L. BROCKETTE

**Recorded on:** September 6, 2007  
**As Clerk's File No.:** 20070086093

**Substitute Trustee:**  
Resolve Trustee Services, LLC, Marinosci Law Group, PC

**Mortgage Servicer:**  
UNITED STATES OF AMERICA, ACTING THROUGH THE  
RURAL HOUSING SERVICE, ITS SUCCESSORS AND  
ASSIGNS, UNITED STATES DEPARTMENT OF  
AGRICULTURE

**Substitute Trustee Address:**  
c/o Marinosci Law Group, P.C.  
16415 Addison Road, Suite 725  
Addison, TX 75001  
(972) 331-2300

**THIS INSTRUMENT APPOINTS THE SUBSTITUTE TRUSTEE(S) IDENTIFIED TO SELL THE PROPERTY DESCRIBED IN THE SECURITY INSTRUMENT IDENTIFIED IN THIS NOTICE OF SALE. THE PERSON SIGNING THIS NOTICE IS THE ATTORNEY OR AUTHORIZED AGENT OF THE MORTGAGEE OR MORTGAGE SERVICER.**

The current Mortgagee and/or Mortgage Servicer under said Deed of Trust, according to the provisions therein set out does hereby remove the original trustee and all successor substitute trustees and appoints in their stead Resolve Trustee Services, LLC, Marinosci Law Group, PC, as Substitute Trustee, who shall hereafter exercise all powers and duties set aside to the said original trustee under the said Deed of Trust, and, further, does hereby request, authorize and instruct said Substitute Trustee to conduct and direct the execution of remedies set aside to the Mortgagee therein.

WHEREAS, default has occurred in the payment of said indebtedness, and the same is now wholly due and the owner and holder has requested to sell said property to satisfy said indebtedness

NOW, THEREFORE, NOTICE IS HEREBY GIVEN that on **TUESDAY, APRIL 7, 2026** between ten o'clock AM and four o'clock PM and beginning not earlier than **10:00 AM** or not later than three hours thereafter. The Substitute Trustee will sell the property by public auction to the highest bidder for cash at the place and date specified. The sale will be conducted at the The Coliseum - 4100 East Paisano Drive, El Paso, TX, 79905 as designated by the Commissioners' Court, of said county pursuant to Section 51.002 of the Texas Property Code as amended; if no area is designated by the Commissioners' Court, the sale will be conducted in the area immediately adjacent (next) to the location where this notice was posted.

UNITED STATES OF AMERICA, ACTING THROUGH THE RURAL HOUSING SERVICE, ITS SUCCESSORS AND ASSIGNS, UNITED STATES DEPARTMENT OF AGRICULTURE, who is the Mortgagee and/or Mortgage Servicer of the Note and Deed of Trust associated with the above referenced loan. The Mortgage Servicer is authorized to represent the Mortgagee by virtue of a servicing agreement with the Mortgagee. Pursuant to the Servicing Agreement and Texas Property code 51.0025, the Mortgage Servicer is authorized to collect the debt and to administer any resulting foreclosure of the property securing the debt.

**ACTIVE MILITARY SERVICE NOTICE**

**Assert and protect your rights as a member of the armed forces of the United States. If you or your spouse is serving on active military duty, including active military duty as a member of the Texas National Guard or the National Guard of another state or as a member of a reserve component of the armed forces of the United States, please send written notice of the active duty military service to the sender of this notice immediately.**

WITNESS MY HAND, 2/18/26  
*Beverly Mitusin*  
Beverly Mitusin  
THE STATE OF TEXAS  
COUNTY OF DALLAS

MARINOSCI LAW GROUP, P.C.

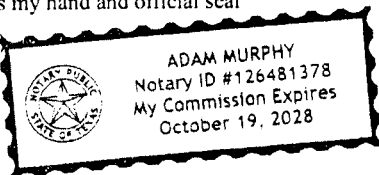
By: *[Signature]*

SAMMY HOODA  
MANAGING ATTORNEY

Before me, Adam Murphy, the undersigned officer, on this, the 18 day of FEB 2026, personally appeared SAMMY HOODA, ☐ known to me, who identified herself/himself to be the MANAGING ATTORNEY of MARINOSCI LAW GROUP PC, the person and officer whose name is subscribed to the foregoing instrument, and being authorized to do so, acknowledged that (s)he had executed the foregoing instrument as the act of such corporation for the purpose and consideration described and in the capacity stated.

Witness my hand and official seal

(SEAL)



*[Signature]*  
Notary Public for the State of TEXAS

My Commission Expires: 10-19-25

Adam Murphy  
Printed Name and Notary Public

Grantor: UNITED STATES OF AMERICA, ACTING  
THROUGH THE RURAL HOUSING SERVICE,  
ITS SUCCESSORS AND ASSIGNS, UNITED  
STATES DEPARTMENT OF AGRICULTURE  
3775 VENTURE DRIVE  
DULUTH, GA 30096  
Our File No. 25-07213

Return to:

MARINOSCI LAW GROUP, P.C.  
MARINOSCI & BAXTER  
16415 Addison Road, Suite 725  
Addison, TX 75001